

**CV-25-005773 ART BUILDINGS LLC vs ROMSPEN CALIFORNIA MORTGAGE LIMITED PARTNERSHIP – Defendants Ric (Atherstone) LLC and Romspen California Mortgage Limited Partnership’s Motion for Attorneys’ Fees – GRANTED in the reduced amount of \$142,575.00.**

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2027-04-30

Motion: The Court GRANTS Defendant’s motion in the reduced amount of \$142,575.00. Moving party to serve and submit a revised proposed order. (Cal. Rules of Court, rule 3.1312.) Defendants have demonstrated that they are entitled to attorneys’ fees pursuant to Civil Code section 1717 because (1) the contract-at-issue allows Defendant to recover attorneys’ fees, (2) the causes of action are on the contract, and (3) Defendant is the prevailing party. “[T]he reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community.” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1157.) The hourly rates that Defendant seeks in the instant motion exceed the local rates. Mr. Hartford’s rate is modified to \$500 per hour, Mr. Poppen’s to \$450 per hour, Mr. Root’s to 450 per hour, Ms. Zhu’s to \$250 per hour, and Paralegal Randerson’s to \$200 per hour. As to the number of hours expended, Plaintiff failed to identify any specific objectional line items (aside from the writ fees) that should be excluded. Attorneys’ fees resulting from a motion to expunge lis pendens and corresponding writ petitions are recoverable under Code of Civil Procedure 405.38. (J&A Mash & Barrel, LLC v. Superior Court of Fresno County (2022) 74 Cal.App.5th 1, 43 [directing Superior Court to determine “reasonable attorney fees and costs under Code of Civil Procedure section 405.38 resulting from the motion and this subsequent writ petition.”]) Defendants did not provide a breakdown of the hours spent per biller on the instant motion. Thus, the Court will not award the requested \$15,000.00 for time billed on the instant motion. The Court finds a total amount of \$142,575.00 in attorneys’ fees to be reasonable for the instant case. David Harford \$18,125.00 Joseph Poppen \$6,637.50 David J. Root \$77,250.00 Wenqing Zhu \$31,562.50 Terry Randerson \$9,000.00 TOTAL: \$142,575.00

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As to the number of hours expended, Plaintiff failed to identify any specific objectional line items (aside from the writ fees) that should be excluded.

Attorneys' fees resulting from a motion to expunge lis pendens and corresponding writ petitions are recoverable under Code of Civil Procedure 405.38. (J&A Mash & Barrel, LLC v. Superior Court of Fresno County (2022) 74 Cal.App.5th 1, 43 [directing Superior Court to determine "reasonable attorney fees and costs under Code of Civil Procedure section 405.38 resulting from the motion and this subsequent writ petition."])

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